

3. Briefly, Zaka Ullah, A.S.I. (complainant/PW-3) after receiving intimation through 15 wireless reached at *Khanpur canal* where condition of a woman was very critical, who with very difficulty disclosed her name as Iram Bibi and further disclosed that accused Ahmad etc. after setting her on fire and with the intention to kill, threw her into the canal; she (victim lady) was immediately shifted to the hospital through 1122 for medical treatment and then فرد بیان (Ex.PC) was sent to the police station for registration of case through Shaukat Ali 787/C.; for ready reference, relevant portion of aforementioned فرد بیان (Ex.PC) is hereby scanned below: -

[illegible]

On the basis of aforementioned فرد بیان (Ex.PC), case was registered *vide* F.I.R. No.1744/2021 dated: 05.09.2021 under Sections: 324, 34 PPC (subsequently, offences under Sections: 302, 336-B and 376 PPC were added during the investigation) at Police Station: Factory Area, District: Sheikhpura. Iram Bibi (victim) was shifted to District Headquarter Hospital, Sheikhpura, she was medically examined there and referred to Mayo Hospital, Lahore where she remained under treatment and then died on 24.10.2021.

After completion of investigation, report under Section: 173 Cr.P.C. was submitted before the Court of Anti-Terrorism Court, Lahore, however *vide* order dated: 18.01.2022, it was observed by said Court that Section: 336-B PPC does not attract in this case, hence, instant case was transferred and subsequently entrusted to the Court of learned Additional Sessions Judge, Ferozewala where the appellant was formally charge sheeted to which he pleaded not guilty and claimed trial. Prosecution during trial examined sixteen witnesses and after giving up PWs namely Muhammad Umar Khalil, Zahoor Ahmad 1917/C, Alisbah 2306/LC being unnecessary and tendering reports of experts, closed its evidence. Thereafter statement of the appellant under Section 342 Cr.P.C. was recorded wherein he refuted allegations levelled against him, he did not opt to appear as his own witness under Section 340 (2) Cr.P.C. or adduce defence evidence. Trial court after conclusion of trial has convicted and sentenced the appellant as mentioned above through the impugned judgment.

4. Learned counsel for the appellant has submitted that conviction recorded and sentence awarded to the appellant through impugned judgment are against the 'law and facts' of the case; dying declaration is neither trustworthy nor corroborated/supported by any other independent evidence; prosecution has remained unable to prove its case. Learned counsel for the appellant finally prayed for acquittal of the appellant.

5. Conversely, learned District Public Prosecutor assisted by learned counsel for the complainant has supported the impugned judgment and prayed for dismissal of the appeal.

6. Arguments heard. Record perused.

7. It has been noticed that case of prosecution consists of statements/dying declaration of Iram Bibi (victim/now deceased of the case), medical evidence, reports of Punjab Forensic Science

Agency, Lahore (Ex.PU and Ex.PT) *qua* DNA of the victim as well as burn test and Gas Chromatography-Mass Spectrometry, respectively and recovery of plastic bottle filled with petrol as well as motorcycle (Ex.PR).

As far as dying declaration of Iram Bibi (victim/now deceased of the case) is concerned, suffice it to say that first of all, she in critical condition though with difficulty stated to Zaka Ullah, A.S.I. (complainant/PW-3) about the occurrence yet mentioned Ahmad (appellant) as accused in the same; she was taken to District Headquarter Hospital, Sheikhpura in injured condition on 05.09.2021 at 01:45 a.m., where she gave history of the occurrence to Dr. Fozia Khalil, (PW-4, who conducted her initial medical examination) while stating that she was at home at 10:00 p.m. on 04.09.2021 when husband of her sister-in-law told her to come with him for a burger, who took her to Khanpur canal where he took her in a dark place, raped her, beat her with stick then burnt her with petrol; in this regard, relevant portion of her statement is hereby reproduced as under: -

“Victim was at home at 10:00 pm on 04.09.2021 when her husband of sister in law told her to come with him for a burger. He took her to Khanpur canal where he took her in a dark place, raped her, beaten her with stick then burnt her with petrol.”

(emphasis added)

Dr. Fozia Khalil (PW-4) did not allow the application moved by the complainant/ police official to record statement of aforementioned victim lady for the reason of pains of the victim and relevant portion of her statement is reproduced: -

“I was also given an application Ex.PI by the then I.O to record the statement of victim which I did not allow due to pains of victim.”

Furthermore, doctor (PW-4) also categorically stated during her cross-examination that the victim was in pain; therefore, she did not allow the recording of victim's statement; in this regard, relevant portion of statement of the doctor (PW-4) reads as under: -

“It is correct that I had mentioned on application of complainant/ police that the victim was not able to get recorded her statement. Volunteer that since she was in pain.”

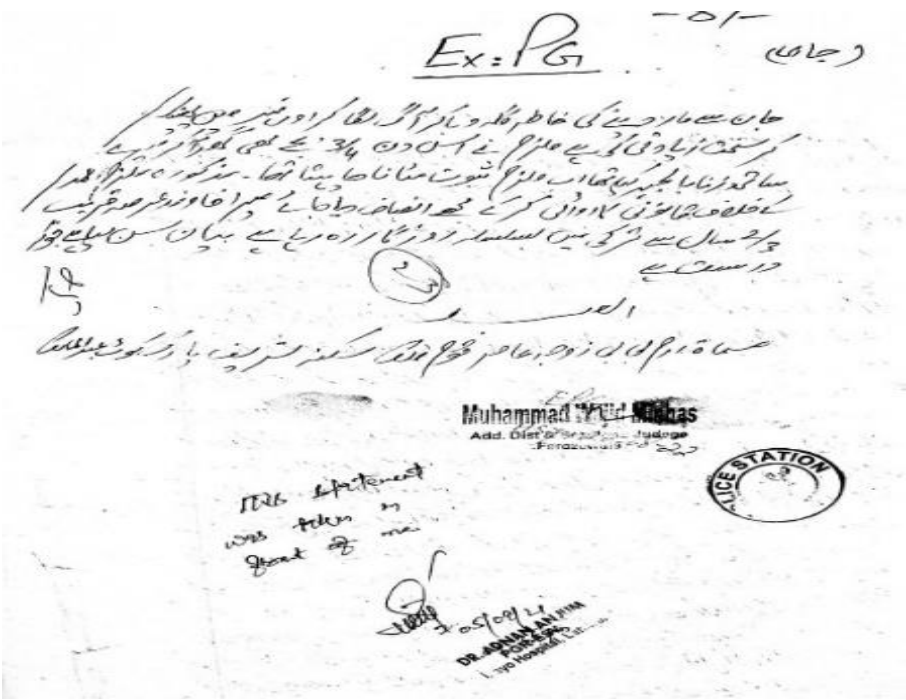
It goes without saying that she (PW-4) did not opine or state that victim was unable to speak rather she (PW-4) even herself recorded history as per details from the victim at Page No.2 of MLC (Ex.PH).

Subsequently, Zaka Ullah, A.S.I. (complainant/PW-3) in the presence of Dr. Muhammad Adnan Anjum (PW-10) recorded dying declaration (Ex.PG) of the victim lady on 05.09.2021 in Mayo Hospital, Lahore; in this regard, relevant portion of statement of complainant/PW-3 is reproduced as under: -

Then, Iram Bibi (victim lady) in her statement (Ex.PG, which is also a “dying declaration”) recorded by Zaka Ullah, A.S.I. (complainant/PW-3) in presence of Dr. Muhammad Adnan Anjum (PW-10), categorically stated that Mst. Noor Akhtar is her sister-in-law (نند) and matter of marriage of her said sister-in-law (نند) was in pipeline with Ahmad Ali (present appellant) and for the said reason he was used to visit their house; meaning thereby that there is no chance of misidentification of the accused/appellant by the victim lady; it was also stated by the victim lady in her aforementioned statement/dying declaration (Ex.PG) that Ahmad (appellant) came to their house at about 10/11 p.m., took her to Khanpur Head (خانپور ہیڈ) on the motorcycle and then into the bushes, forcibly committed rape with her; on insistence for going back by her, started beating and torturing her, threw her into the canal and when she came out of the canal, he sprinkled petrol on her shawl (چادر) as well as on his shirt and after setting on fire threw the same on her, due to which, her body was burnt. For ready reference, relevant portion of aforementioned statement/dying declaration (Ex.PG) is scanned below: -

$$\underline{E_X = P_G}$$

بیان نزاع از ان مساعی ازم بی زور و عام قضاوت و استیلا
 میان کنگو که میں نے مندرجہ بالا مذکورہ شہر میں عمر و قریب ۱۹۰۰ سال میں
 شادی صمدی عام سے ہوئی تھی میرے دو دم عمر بیٹے جن میں مکمل گورنور خان
 جون میں باکسل ان پڑھ جون مساعی نور و دختر عبدالحی میری ہندو میں
 کے ارشدہ کی بات میرا اہل سہرہ شریف پادار کسے کے اصل ایسی ہے جس کی
 وجہ سے اہل کنگو کے گھر میں کافی آنا جا رہا ہے اور مکمل ہندو میں سے
 مسکرا کر ان کی ذرا نبواری کرنا ہے میری ساس اور نندہ جون میں کامیابی
 میں جیکو و روضان دو کا ندری کرنا ہے مکمل عمر و ۹۰ کو تمام گورنور خان
 کامیابی سے تھے میں اپنے بیٹوں کے ہمراہ اپنے گھر میں سوئے ہوئے تھے
 قریب ۱۱۰۰ عیسویات صمدی اہل کنگو کے گھر میں جیکو اس سے پہلے اہل کنگو کے
 خوں پر ہے سے کیا کر خود اس کا ہے جاتا ہے پہلے میں نے اہل کنگو کے اہل کنگو
 مندرجہ کے اہل کنگو میں نے جانی کی حالتی ہوئی جو مندرجہ مکمل کرنا جاو
 سیکھ گئی میں شہر گیا اور میں کپڑے بدل کر مندرجہ کے پاس پہنچی گئی وہ میں
 سوڑ سائیکل پر اہل کنگو کے پاس پہنچی گئی جو مجھے خانہ پر لے گیا جو مجھے خانہ پر لے گیا
 لے گیا جہاں پر مجھے اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 مجھ کو اپنے قریبی اہل کنگو کے پاس میں لے گیا اور انہوں نے میرے ساتھ زمانہ
 کیا میرے واسطے کے اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 نے جاتوں میں اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 کو میرا اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 میرے چھک دیا میں جاتوں کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 مندرجہ کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 اور میرا اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 سے اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 نے کیا کر تم ایسے نہیں مڑو گی اور میرا اہل کنگو کے پاس پہنچی گئی
 شروع کر دیا اور مندرجہ کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی
 بھی اہل کنگو کے پاس پہنچی گئی جو مندرجہ کے پاس پہنچی گئی



Perusal of afore-mentioned Dying Declaration reveals that it was recorded in the presence of doctor and thumb marked by the victim lady. Furthermore, aforementioned Dr. Muhammad Adnan Anjum while appearing before the Court as PW-10 categorically stated in his examination-in-chief that on 05.09.2021 at Mayo Hospital, Lahore after recording statement of Iram Bibi (victim), he gave opinion that the patient/victim is fit for recording the statement; in this regard, relevant portion of his statement is reproduced as under: -

“Stated that on 05.09.2021 at Mayo hospital Lahore after recording the statement of victim Iram Bibi I gave opinion that the patient/victim fit for the statement.”

Thereafter on 18.09.2021, Arshad Ali, Inspector (Investigating Officer of the case/PW-14) made written request before Mr. Umer Farooq Warraich, learned Judicial Magistrate Section 30, Ferozewala (PW-13) for recording statement under Section: 174-A Cr.P.C. of the victim lady in this case; Dr. Abbas Ali Shah, House Officer of Mayo Hospital, Lahore gave his opinion that the victim lady was fit to record her statement, whereupon learned Judicial Magistrate (PW-13) reached at 4th floor of Mayo Hospital in Surgical Burn Ward at about 03:45 p.m. where Iram Bibi (victim lady) was admitted in burn ward and under treatment; he after observing necessary formalities recorded statement of the victim lady at 04:10 p.m., obtained her thumb impression as a token of correctness of her statement and also gave his certificate that whole statement of the victim was read over to her to which she believed as correct; in this regard, copy of proceedings of statement of the victim lady recorded under Section:

174-A Cr.P.C. is available on the record as Ex.PQ at pages No.119 to 124 of the paper book, which after death of the victim lady is to be accepted in evidence as “dying declaration” in the light of Section: 174-A Cr.P.C.

It is relevant to mention here that though under Section: 164 Cr.P.C., Magistrate of First class and any Magistrate of the second Class specially empowered in this behalf by the Provincial Government is already having powers to record any statement or confession made to him in the course of investigation under Chapter XIV of the Code of Criminal Procedure, 1898 or at any time afterwards before commencement of inquiry or trial but such statement only could have been recorded by the Magistrate during investigation of the case which of course is conducted after registration of the case. However, while keeping in view gravity of offence of causing injuries by burns as well as noticeable increase in the number of such occurrences, for the purpose of preserving version of the victim at once without loss of time and even without any hindrance including waiting for registration of case or commencement of investigation, legislature brought the provision of Section: 174-A Cr.P.C. on the statute to cater this state of affairs and of course for recording statement of such victim promptly and with the spirit to eliminate any element of consultation, deliberation, fabrication or concoction in the statement; even it is not necessary for recording statement under Section: 174-A Cr.P.C. that there would have been imminent danger to the life of the victim rather only requirement is burning on the body of the victim and of course it provides efficacious, adequate and speedy mode of preserving the most important and relevant piece of evidence; on the one hand, it preserves the prosecution evidence whereas on the other hand, it also stops introduction of polluted facts as well as roping of innocent persons as accused through dishonest improvement at any subsequent stage of the case. Statement recorded under Section: 174-A Cr.P.C. of the victim is acceptable in evidence as “dying declaration” if the injured person expires; for ready reference, Section: 174-A Cr.P.C. is hereby reproduced as under: -

*“[174-A. Grievous injury by burns.---(1) Where a person, grievously injured by burns through fire, kerosene oil, acid, chemical or by any other way, is brought to a Medical Officer on duty designated by the Provincial Government for this purpose or, such incident is reported to the Officer-in-Charge of a police station, such Medical Officer on duty, or, as the case may be, Officer-in-Charge of a police station, shall immediately give intimation thereof to the nearest **Magistrate**. Simultaneously, the Medical Officer on duty shall record the statement of the injured person immediately on arrival so as to ascertain the*

*circumstances and cause of the burn injuries. **The statement shall also be recorded by the Magistrate in case the injured person is still in a position to make the statement.***

(2). The Medical Officer on duty, or, as the case may be, the **Magistrate**, before recording the statement under sub-section (1), shall satisfy himself that the injured person is not under any threat or duress. The statement so recorded shall be forwarded to the Sessions Judge and also to the District Superintendent of Police and Officer-in-Charge of the police station, for such action as may be necessary under this Code.

(3). If the injured person is unable, for any reason, to make the statement, before the **Magistrate**, his statement recorded by the Medical Officer on duty under sub-section (1) shall be sent in sealed cover to the **Magistrate** or the trial Court if it is other than the **Magistrate** and may be accepted in evidence as dying declaration if the injured person expires.]”

(emphasis added)

After perusing aforementioned four statements made by Iram Bibi (victim lady/now deceased of the case) i.e. firstly before Zaka Ullah, A.S.I./complainant (PW-3) at the place of occurrence recorded in Fard Bayan فرد بیان (Ex.PC), then before Dr. Fozia Khalil (PW-4) mentioned in the history at Page No.2 of the MLC (Ex.PH), before Zaka Ullah, A.S.I. (complainant/ PW-3) in the hospital in presence of Dr. Muhammad Adnan Anjum (PW-10) i.e. Ex.PG and lastly before Mr. Umer Farooq Warraich, learned Judicial Magistrate Section 30, Ferozewala (PW-13) i.e. Ex.PQ, it is crystal clear that she (victim lady) mentioned the present appellant as accused in this case with specific allegation of taking her to Khanpur Head (خانپور ہیڈ) while riding on the motorcycle, forcibly committing rape with her, beating and torturing her, throwing her into the canal and when she came out of the canal, then setting her on fire after sprinkling the petrol, due to which, her body was burnt.

By now it is well settled that evidentiary value of the “dying declaration” is well recognized under the law of land in the light of Article: 46 of the Qanun-e-Shahadat Order, 1984. The “dying declaration” is treated with high regard due to the presumption that individuals are unlikely to lie when facing the immense death or at a time by which the deceased could not have consulted others or received hints from others. The “dying declaration” is a question of fact to be determined on the facts of each case. To find the truth or falsity of the same, case is generally to be considered in its all physical environmental circumstances. It (dying declaration) should be free from any interference and the person before whom it was made, has to be examined. It is necessary to ascertain that “dying declaration” was made honestly, its maker was in fit state of mind to make the statement and had made a truthful statement; in this regard, case of **“MUHAMMAD SAEED and another**

Versus The STATE and another” (2024 SCMR 1421) can be advantageously referred. Guidance has also been sought on the subject from the case of **“ABDUL KHALIQ Versus The STATE”** (2021 SCMR 325). It is relevant to mention here that when there is nothing to suggest that the deceased substituted the accused in place of real culprit, then it can be accepted as last statement made by the deceased and it is not necessary that same must have been made in the immediate apprehension of death. The “dying declaration” if has been proved as made without any adulteration or consultation or tutoring from any corner and appears that it has been made with honesty and is having consonance with other facts and circumstances of the case then, it (dying declaration) is a strong piece of evidence against the appellant and it needs no independent corroboration; in this regard, cases of **“NIAMAT ALI versus THE STATE”** (1981 SCMR 61) and **“FARMANULLAH Versus QADEEM KHAN and another”** (2001 SCMR 1474) can be safely referred. Though minor discrepancies do occur in the evidence of the witnesses yet when overall consensus from narration of the facts is that “dying declaration” reflects true picture of the occurrence, then it is to be taken into consideration. When “dying declaration” made in this case recorded by the police before the doctor (Ex.PG) and then by the learned Magistrate (Ex.PQ) are weighed in the scales of well settled principles on the subject, then we have come to the conclusion that same has been got recorded by Iram Bibi (deceased of the case) without any consultation, interference or tutoring. It contained true picture of the occurrence as well as cause of death. There is nothing discernible from the record to show that there was any element of substitution of the accused/appellant or falsely roping him in this case or there is question of his misidentification by the victim lady in this case. Therefore, “dying declaration” of Iram Bibi (victim/now deceased of the case) recorded in this case, has been found by us as confidence inspiring, trustworthy, truthful and reliable.

Dr. Fozia Khalil (PW-4) conducted initial medical examination of the victim lady; relevant portion of her statement *qua* physical examination of the victim lady is hereby reproduced: -

“PHYSICAL EXAMINATION:

She was wearing black trouser. Shirt was burnt and victim was full of mud. She has an average physique, not well oriented, cooperative. Her height was average and body had burnt injuries.

INJURY NO.1 *Two lacerations of 1.5x0.5 and 1.5 x0.5 cm on right eye brow.*

INJURY NO.2 A contused swelling on full right eye
INJURY NO.3 A laceration of 4 x1.5 cm on right side of face.
INJURY NO.4 Two lacerations 1.5 x 1 cm on Upper lip
INJURY NO.5 Small abrasion of 0.5 and 1cm on left check.
INJURY NO.6 40 percent burn on body
INJURY NO.7 Swelling of whole left hand with index and middle
finger deformity.

Injuries No.1,2,3,4,6 and 7 is kuo for X-Ray, CT Scan Brain, skull, dental surgeon and general surgeon opinion. I was also given an application Ex.P.I by the then I.O to record the statement of victim which I did not allow due to pains of victim.”

Perusal of afore-mentioned portion of statement reveals that seven injuries were noted on the body of victim which shows that 40 percent of her body was burnt and she was also tortured; her shirt was burnt and she was full of mud. Dr. Fozia Khalil (PW-4) also took swab from vaginal and body surface area, handed over to the police and in her final opinion categorically observed that **there is evidence of fresh vaginal intercourse and penetration**; in this regard, relevant portion of her statement reads as under: -

“According to PFSA 2021-438845-DNA-065111, there is evidence of fresh vaginal intercourse and penetration.”

Iram Bibi (victim lady) died on 24.10.2021 in Mayo Hospital, Lahore, Dr. Naureena Choudhary (PW-6) issued her death certificate (Ex.PK); in this regard, relevant portion of her statement is reproduced as under: -

*“On 05.09.2021 Eram Bibi wife of Amir aged about 35 years was admitted in Mayo Hospital and on 06.09.2021 she shifted to Burn Unit of Mayo Hospital. **On 24.10.2021 Eram Bibi was expired**, therefore, I issued death certificate Ex.P.K of deceased Eram Bibi which bears my signatures Ex.P.K/I.”*

(emphasis added)

Dr. Sajida Parveen (PW-2) conducted postmortem examination over dead body of the victim/deceased on 24.10.2021, on external examination, she found whole abdomen, upper trunk and upper limbs were wrapped in bandage due to severe burn; relevant portion of her (PW-2) statement is reproduced as under: -

“Whole abdomen and upper tank, upper limbs were wrapped in bandage due to severe burn.”

Dr. Sajida Parveen (PW-2), during postmortem examination over dead body of Iram Bibi (deceased of the case)} observed following injuries on her body: -

“Injury No.1. Deep burn approximately 12 x 5 cm on posterior side of right arm and elbow 21 cm away from shoulder joint.

- Injury No.2. 22x8 cm burn on front of right arm and for arm. This was deep burn.
- Injury No.3. whole posterior side of left arm and forarm were burn involving whole the surface. There were two abrasions on left upper chest 5x1 cm each and about 2cm apart.
- Injury No.4. Whole posterior side of upper trunk and back was burn (deep burn).
- Injury No.5. Whole left side of chest and abdomen was burn (deep burn)
- Injury No.6 deep blue bruise on right side of cheek (7x2 cm) ”

Perusal of aforementioned injuries reveals deep burn on different parts of body of the deceased as well as abrasions on parts of her body. She (PW-2) further observed as under: -

“According to operation notes from Mayo Hospital plastic surgery unit a full thickness flame burn with total body surface area of 35 present involving back, left shoulder, right arm, left arm, left forarm and small patches on anterior trunk. Multiple debridment was done under general anesthesia and interactive dressing was applied. Patient was deteriorated and shifted to burn ICU for critical care. Patient was put on ventilatory support and triple cardiac support. Patient expired on 24.10.2021.”

In her final opinion, doctor (PW-2) categorically observed that after receiving notes it is confirmed that cause of death is **extensive burn which leads to sepsis** but still DNA analysis is awaited from forensic lab; in this regard, relevant portion of her statement reads as under: -

*“In my opinion after receiving notes it is confirmed that **cause of death is extensive burn that leads to sepsis** but still DNA analysis is awaited from forensic lab.”*

(emphasis added)

It is noteworthy to mention here that on 21.09.2021, accused/appellant was brought in handcuffs before Dr. Muhammad Raza (PW-7) for evaluation of sexual potency, who after his examination finally opined that there was no doubt that the accused/appellant was sexually potent and able to perform sexual act.

As per Forensic DNA and Serology Analysis Report (Ex.PU) issued by Punjab Forensic Science Agency, on the two vaginal/body surface area swabs from Iram Bibi (marked as Item No.1 in the report), trace number of spermatozoa were identified; the DNA profile obtained from sperm fraction of item No.1 was found as mixture of at least two individuals, Ahmad Ali (Buccal swab standards of Ahmad Ali marked as Item No.S1 in the report) and Iram Bibi (Blood sample of Iram Bibi and liver sample of Iram Bibi marked as Item No.4 and 5 in the report) could not be excluded as being contributors to this DNA mixture profile.

The possible contribution to the DNA obtained from sperm fraction of Item No.1 by Ahmad Ali (Item No.S1) was approximately 13 quadrillion times more likely as compared to an unrelated Caucasian individual.

The DNA profile obtained from the epithelial fraction of Item No.1 matches with the DNA profile of Iram Bibi (Item No.4 and 5). Said report confirms sexual act by the appellant with Iram Bibi (victim lady). Hence, fresh vaginal intercourse (penetration) with Iram Bibi, torture upon her, getting her burnt and her death due to said burning has been established by the medical evidence.

Bottle filled with petrol (P-2) as well as motorcycle (P-1) were recovered at the pointing out of the appellant, as per Trace Chemistry Analysis Report issued by Punjab Forensic Science Agency, Lahore (Ex.PT) after burn test and Gas Chromatography-Mass Spectrometry, it was concluded that **Gasoline (petrol) was identified in Item No.1** i.e. Plastic bottle of Sprite, filled with petrol.

As far as minor apparent discrepancy between time of getting information as well as recording فرد بیان (Ex.PC) by the complainant (PW-3) in the case and time of receiving the victim lady in District Headquarter Hospital, Sheikhpura is concerned, suffice it to say that as per فرد بیان (Ex.PC), Zaka Ullah, A.S.I. (complainant/PW-3) after receiving information through 15 wireless, reached at Khanpur canal and found aforementioned victim lady in critical condition there, who (victim) with difficulty told her own name as well as of accused and occurrence to police official, and he (PW-3) immediately sent her to the hospital through 1122 for medical treatment and thereafter completed his proceedings relating to فرد بیان (Ex.PC) at 02:30 a.m.; meaning thereby that she (victim lady) was sent to the hospital prior to completion of said proceedings of فرد بیان (Ex.PC) which were completed at 02:30 a.m. and that is why as per statement of Dr. Fozia Khalil (PW-4), she (victim) was brought in District Headquarter Hospital, Sheikhpura on 05.09.2021 at 01:41 a.m.; therefore, there is no material discrepancy, in fact.

Needless to mention here that the word “وغیره” mentioned with “احمد” in فرد بیان (Ex.PC) is not fatal in this case as it is expressly mentioned in فرد بیان (Ex.PC) that with difficulty she told her name and other facts to police official and in such condition word “وغیره” is of no significance when on the same day

before Medical Officer, she mentioned only one accused and same was the position in her dying declaration i.e. Ex.PG and Ex.PQ.

Dying declaration of the victim lady has been supported/ confirmed by the medical evidence and corroborated by the reports of PFSA *qua* DNA and gasoline, recovery of bottle (P-2) and motorcycle (P-1).

It is pertinent to mention here that Ahmad Ali (appellant) while recording his statement under Section 342 Cr.P.C. in response to Question No.19 “*Why this case against you and why the PWs have deposed against you?*”, replied as under: -

“I am innocent. According to first version of the victim before doctor actually her nandoi committed the occurrence and being in league with her father in law Zaka Ullah ASI complainant after getting bribe from him roped me as a sacrificial goat in this case.”

Said defence version is mere bald denial; appellant neither produced any evidence in his defence nor himself appeared on oath under Section: 340 (2) Cr.P.C. for dislodging of allegation levelled against him; he did not move any application before the high-ups against the complainant/Investigating Officer of this case; even he did not opt to file any application for change of investigation of this case. However, keeping the case of prosecution and defence in juxtaposition, we have found that defence version stands nowhere, however, version of prosecution, which is based on dying declaration of the victim lady, supported by medical evidence, corroborated by recoveries of bottle of petrol, motorcycle and reports of PFSA *qua* DNA test as well as petrol in bottle, is confidence inspiring, truthful and reliable.

8. In view of what has been discussed above, prosecution has proved its case against the appellant upto hilt, beyond any shadow of doubt; therefore, appellant has been rightly convicted as mentioned above.

9. As far as question of quantum of sentence is concerned, it has been observed that appellant has taken life of a woman aged about 35-years without any justification. Such like person does not deserve any leniency in sentence particularly when there is no evidence of mitigation of any nature available on the record. In the peculiar facts and circumstances of the case, deterrent aspect of sentence cannot be overlooked because such persons who take law in their hands in such a callous manner without any justification deserve exemplary punishment. Hence, convictions recorded and sentences awarded to Ahmad Ali (appellant) through impugned judgment are upheld in toto and his **Criminal Appeal No.7522-J/2023** is, dismissed.

10. Resultantly, death sentence awarded to Ahmad Ali (appellant) is **CONFIRMED** and Murder Reference (**M. R. No.138 of 2023**) is answered in **AFFIRMATIVE**.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

APPROVED FOR REPORTING.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

This judgment has been dictated and pronounced
on 08.06.2026 whereas after preparation/
completion, signed on 10.06.2026.

Kashif